

File No.: EXP202209837

RESOLUTION No.: R/00293/2023

In view of the complaint filed on August 1, 2022, with this Agency by Mr. A.A.A. (hereinafter, the complainant) against CAIXABANK, S.A. (hereinafter, the respondent or Caixabank), for not having properly addressed his right to erasure.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The complainant states that, since March 30, 2021, he has been receiving communications from the respondent directed to another client at his email address, which he reported to Caixabank on numerous occasions (including in person at the corresponding assigned office), and although they acknowledged the error, the issue was not resolved.

Therefore, on July 22, 2022, he reiterated (via email) his request for the erasure of the inaccurate data associated with him (email address), receiving a response dated August 1, 2022, denying his request and stating that "We regret the inconvenience and extend our sincere apologies; our entity has made efforts to locate the recipient of the emails you refer to and verify the contact address, without satisfactory results so far. In compliance with current legal regulations, we cannot modify our clients' contact data without their express consent, so we will continue to insist on locating them."

Along with the complaint, he provides a screenshot of one of the communications received directed to a third party, dated May 7, 2022, and a screenshot of an email dated May 23, 2022, in which he informs the respondent of what happened, attaching the erroneous communication received.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has established a mechanism prior to the admission of complaints filed with the AEPD, consisting of forwarding them to the Data Protection Delegates designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the respondent entity for analysis and to respond to the complainant and this Agency within one month, without any response having been received.

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THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the complainant's claims to be considered satisfied. Consequently, on November 1, 2022, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing and informed the parties that the maximum period to resolve this procedure, which is understood to have commenced with the aforementioned admission agreement, will be six months.

The mentioned agreement granted the respondent entity a hearing process, so that within ten working days it could present any allegations it deemed appropriate. This entity indicated, in summary, that "After the corresponding internal verifications, on August 12, 2022, a response was given to Mr. A.A.A., informing him that the Entity had taken the necessary measures to avoid such a situation. Therefore, since that date, the Complainant has not received any communication from another client. In this regard, Document No. 2 is attached, which includes this communication, as well as the personal file, which contains the interested email address associated with him (Document No. 3).

The complainant has been informed again in the manner previously indicated, in the letter attached as Document No. 1, sent by certified mail with acknowledgment of receipt."

FOURTH: The allegations presented by the respondent have been examined and are subject to transfer to the complainant, so that, within fifteen working days, he may formulate any allegations he considers appropriate, without any response having been received.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

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In accordance with this regulation, prior to the admission for processing of the complaint that gives rise to this procedure, the same was forwarded to the responsible entity for analysis, to respond to this Agency within one month and to demonstrate that it has provided the complainant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

The purification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, whose exceptional nature implies that, whenever possible, the preference for alternative mechanisms that are supported by current regulations should be chosen.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be purified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure the guarantees and rights of the complainant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than within a month.

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unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding the fulfillment of the duty to respond to the request for the exercise of rights made by the affected party lies with the responsible party.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the responsible party may request the affected party to specify the "data or processing activities to which the request refers." The right will be understood as granted if the responsible party provides remote access to the data, considering the request fulfilled (although the interested party may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive on more than one occasion during the period of six months, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

FOURTH: Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The interested party shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the interested party withdraws consent on which the processing is based in accordance with Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), and this is not based on another legal ground;
- c) the interested party objects to the processing pursuant to Article 21, paragraph 1, and there are no overriding legitimate grounds for the processing, or the interested party objects to the processing pursuant to Article 21, paragraph 2;
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation under Union or Member State law applicable to the data controller;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8, paragraph 1.

2. When the data controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the data controller, taking into account the available technology and the cost of implementation, shall take reasonable measures, including technical measures, to inform the data subjects..."

responsible parties that are processing the personal data of the request of the interested party for the deletion of any link to that personal data, or any copy or replica thereof.

3. Sections 1 and 2 shall not apply when the processing is necessary:

- a) to exercise the right to freedom of expression and information;
- b) for compliance with a legal obligation requiring the processing of data imposed by Union or Member

State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;

d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, to the extent that the right referred to in paragraph 1 could make impossible or seriously hinder the achievement of the objectives of that processing, or

e) for the formulation, exercise, or defense of claims.”

FIFTH: In the case analyzed here, from the examination of the documentation provided, it has been established that the claimant exercised their right to deletion of an inaccurate data and that the respondent denied such deletion indicating that “We apologize for the inconvenience and extend our sincere apologies; our entity has made efforts to locate the recipient of the emails referred to and to verify the contact address, with no satisfactory result so far. In compliance with current legal regulations, we are unable to modify the contact details of our clients without their express consent, so we will continue to insist on their location.”

Notwithstanding the above, during the processing of the present procedure, the respondent has sent a letter to the claimant indicating that “After the corresponding internal verifications, on August 12, 2022, a response was given to Mr. A.A.A., informing him that the Entity had taken the necessary measures to avoid such a situation. Therefore, since that date, the Claimant has not received any communication from another client. In this regard, Document No. 2 is attached, which includes said communication, as well as the personal file, which contains the interested email associated with their person (Document No. 3).”

Based on the above, considering that the present procedure aims to ensure that the guarantees and rights of the affected parties are duly restored, and given that the entity has addressed the right belatedly, it is appropriate to uphold, for formal reasons, the complaint filed.

Having regard to the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the complaint filed by Mr. A.A.A. against CAIXABANK, S.A. However, it is not appropriate to issue a new certification by said entity, as the response was issued belatedly, and no additional actions are required from the controller.

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SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to CAIXABANK, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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